

POWER OF ATTORNEY TO SELL REAL ESTATE
NOTICE

THE PURPOSE OF THIS POWER OF ATTORNEY IS TO GIVE THE PERSON YOU DESIGNATE (YOUR “AGENT”) BROAD POWERS TO HANDLE YOUR PROPERTY, WHICH MAY INCLUDE POWERS TO SELL OR OTHERWISE DISPOSE OF ANY REAL OR PERSONAL PROPERTY WITHOUT ADVANCE NOTICE TO YOU OR APPROVAL BY YOU.

THIS POWER OF ATTORNEY DOES NOT IMPOSE A DUTY ON YOUR AGENT TO EXERCISE GRANTED POWERS, BUT WHEN POWERS ARE EXERCISED, YOUR AGENT MUST USE DUE CARE TO ACT FOR YOUR BENEFIT AND IN ACCORDANCE WITH THIS POWER OF ATTORNEY.

YOUR AGENT MAY EXERCISE THE POWERS GIVEN HERE THROUGHOUT YOUR LIFETIME, EVEN AFTER YOU BECOME INCAPACITATED, UNLESS YOU EXPRESSLY LIMIT THE DURATION OF THESE POWERS OR YOU REVOKE THESE POWERS OR A COURT ACTING ON YOUR BEHALF TERMINATES YOUR AGENT’S AUTHORITY.

YOUR AGENT MUST KEEP YOUR FUNDS SEPARATE FROM YOUR AGENT’S FUNDS.

A COURT CAN TAKE AWAY THE POWERS OF YOUR AGENT IF IT FINDS YOUR AGENT IS NOT ACTING PROPERLY.

THE POWERS AND DUTIES OF AN AGENT UNDER A POWER OF ATTORNEY ARE EXPLAINED MORE FULLY IN 20 PA.C.S. CH. 56.

IF THERE IS ANYTHING ABOUT THIS FORM THAT YOU DO NOT UNDERSTAND, YOU SHOULD ASK A LAWYER OF YOUR OWN CHOOSING TO EXPLAIN IT TO YOU.

I HAVE READ OR HAD EXPLAINED TO ME THIS NOTICE AND I UNDERSTAND ITS CONTENTS.

(Principal)

(Date)

KNOW ALL PERSONS BY THESE PRESENTS THAT:

I, _____, do hereby make, constitute and
(Name of Principal)
appoint _____ my true and lawful Agent for me and in my
(Name of Agent)
name, place and stead, giving and granting unto my said Agent full power and authority to grant,
bargain, sell and do all acts necessary to complete the sale of the following described real estate
in _____ County, Pennsylvania:

See Exhibit "A" (Legal Description) Attached

with an address of: _____
(Street Address or Post Office Designation of Premises being Mortgaged)
and all buildings and improvements located on the premises.

My Agent shall have full power and authority to make, execute and deliver agreements of sale, deeds and conveyances for same, and to sign and execute all documents and other papers involved in the sale of the above described real estate and to receive proceeds of sale on my behalf, and my Agent shall have full power and authority to do and perform in and about the premises each and every act and thing whatsoever requisite for the sale, as fully for all intent and purposes as I could do if personally present. I hereby ratify and confirm all that my Agent shall lawfully do or cause to be done by virtue of this Power of Attorney.

This Power of Attorney shall not be affected by my disability. It is my wish and intent that the authority conferred by me to my Agent pursuant to this Power of Attorney should be exercisable notwithstanding my disability, my incapacity, or subsequent disability or incapacity or uncertainty as to whether I may be dead or alive. All acts done by my Agent and pursuant to the Agent's instructions during any period of disability or incompetence or uncertainty as to whether I may be dead or alive shall have the same effect and shall bind my heirs, legatees, devisees and personal representative as if I was alive, competent and not disabled.

IN WITNESS WHEREOF, I hereunto set my hand this _____ day of _____, _____.

Witness:

(Principal)

STATE OF _____)
) SS:
COUNTY OF _____)

On this _____ day of _____, _____, before me, a Notary Public, personally appeared _____, known to me or
(Name of Principal)
satisfactorily proven, to be the person(s) whose name(s) is(are) subscribed to the within Instrument, and acknowledge that he/she(they) executed the same for the purposes herein contained.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

Notary Public: _____ My Commission Expires: _____

AGENT ACKNOWLEDGEMENT

I, _____, have read the attached Power of Attorney and
(Name of Agent)
am the person identified as the Agent for the Principal. I hereby acknowledge that in the absence
of a specific provision to the contrary in the Power of Attorney or in 20 Pa.C.S., when I act as
Agent:

- I shall exercise the powers for the benefit of the Principal.
- I shall keep the assets of the principal separate from my assets.
- I shall exercise reasonable caution and prudence.
- I shall keep a full and accurate record of all actions, receipts and disbursements on behalf of the Principal.

(Agent)

(Date)